THE STATE

vs

HERMAN NDEBELE

HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDHLOVU JJ
BULAWAYO, 4 JULY 2025

Criminal Review Judgment

MUTEVEDZI J: My view is that even in cases where an offender is an incorrigible criminal convicted of numerous counts of a serious offence, he still deserves to be sentenced rationally. The approach adopted by the trial magistrate in this case was akin to simply rearranging the chairs on the Titanic. It achieved little, if anything.

[1] The offender appeared before a Provincial Magistrate at Tsholotsho Magistrate Court on 30 May 2025, facing fifteen (15) counts of "Unlawful Entry into Premises" committed in aggravating circumstances as defined in section 131(2)(e) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE"). He was convicted on his plea of guilty in respect of counts 1, 3, 7, 10 & 12. In respect of counts 4, 5, 6, 8, 9, 11, 13, 14 & 15, he was convicted after a contested trial. In count 2, he was found not guilty and was acquitted.

[2] Nothing turns on the convictions. I confirm them. The source of strife is the sentences imposed on the offender, which were as follows:

> Count 1- 24 months imprisonment, of which 4 months was suspended on good behaviour.
> Count 3 – 24 months imprisonment, of which 10 months were suspended on condition the offender restitutes the complainant ZAR500/Zig equivalent on or before 30.07.25.
> Count 4 – 12 months imprisonment, of which 6 months were suspended on condition the offender restitutes the complainant in the sum of US$9.00 on or before 30.07.25.
> Count 5- 24 months imprisonment, of which 10 months was suspended on good behaviour.
> Count 6 – 12 months imprisonment wholly suspended on condition the offender restitutes the complainant in the sum of USD$150/Zig equivalent on or before 30.07.25.
> Count 7 – 6 months imprisonment wholly suspended on condition the offender restitutes the complainant in the sum of ZAR50/Zig equivalent on or before 30.07.25.
> Count 8 - 6 months imprisonment wholly suspended on condition the offender restitutes the complainant in the sum of USD$16/Zig equivalent on or before 30.07.25.

Count 9 - 24 months imprisonment, of which 10 months was suspended on condition the offender restitutes the complainant USD$70/Zig equivalent on or before 30.07.25.
Count 10 - 14 months' imprisonment, of which 4 months was suspended on condition that the offender restitutes the complainant ZAR525/Zig equivalent & AU$5/Zig on or before 30.07.25.
Count 11 - 10 months imprisonment wholly suspended on condition the offender restitutes the complainant in the sum of ZAR595/Zig equivalent on or before 30.07.25.
Count 12 – 12 months imprisonment, of which 6 months were suspended on condition the offender restitutes the complainant ZAR600 & USD$40.00/Zig equivalent on or before 30.07.25.
Count 13 - 24 months' imprisonment, of which 4 months was suspended on condition that the offender restitutes the complainant USD$300/Zig equivalent on or before 30.07.25.
Count 14 - 4 months imprisonment wholly suspended on condition the offender restitutes the complainant in the sum of ZAR100/Zig equivalent on or before 30.07.25.
Count 15 - 30 months imprisonment, of which 5 months was suspended on good behaviour. A further 5 months was suspended on condition that the offender restitutes the complainant ZAR45 538/Zig equivalent on or before 30.07.25
In addition, the 8-month suspension in Nyam94/21 is hereby brought into effect. Accused to serve the sentences consecutively.

[3] All in all, the offender was sentenced to 226 months' imprisonment, of which 19 months were suspended on condition of good behaviour in the future and 83 months were set aside on condition of restitution. He remained with 124 months, equivalent to approximately 10 years and 4 months of effective imprisonment. That duration excluded the 8 months imprisonment previously suspended on another charge which was also and brought into effect. As I will demonstrate, the trial magistrate's approach to sentencing was, to say the least, haphazard. Some of the issues which quickly came to mind were the following:

a. Given the number of counts involved, was it not less cumbersome to impose a global sentence and then suspend portions of it on conditions rather than adopt the fragmented approach employed by the trial magistrate?
b. Do the terms of imprisonment suspended on condition of restitution have any relationship with the amounts involved?
c. Why was it that, in some cases, the restitution which was ordered was unrelated to the values of the property stolen?
d. Did the offender even understand the sentences imposed on him?

[4] I admit from the onset that the offender appears to be an inveterate. But even then, he was entitled to understand the processes which led to the imposition of the lengthy periods of incarceration that he now faces. Like everyone else, he remains a human being with all the attendant rights to a fair trial. When the record of proceedings landed on my desk, I considered it futile to raise the queries which I specified above with the trial magistrate

because I reckoned that no amount of explaining could cure most of the indiscretions I had noted.

[5] All the counts of unlawful entry, for which the offender was convicted, were committed within a month. Between 5 February 2025 and 5 March 2025, the offender broke into various premises in Tsholotsho, stealing a range of property and cash. The total value of all the property and cash stolen amounted to USD$2,339.00, ZAR 111,670.00, and AUS$5. The property, which was recovered, was valued at USD 2,104, ZAR 10,200, and AUD 5. The actual loss suffered by the various complainants jointly was USD 235.00 and ZAR 101,470.

[6] The sentencing of offenders convicted of committing multiple crimes or multiple counts of the same crime, though relatively straightforward, has always been a difficult proposition for some judicial officers. This court has attempted to simplify the procedure in a long line of cases. In *S v Chawasarira* 1991(1) ZLR 67 (HC) at p. 69, SMITH J put it thus:

> "Separate punishments should, save in exceptional cases, be imposed for each separate charge. One globular sentence for two or more offences should only be considered where the offences are of the same or similar nature and are closely linked in point of time. If these two requirements are not satisfied, then a separate sentence must be imposed in respect of each offence."

[7] As much as HIS LORDSHIP sounded a caution on combining multiple counts as one for sentencing, he equally laid out the criteria that must be followed where a court wishes to do so. The first is that the crimes must be the same. The second is that they must be kindred.

[8] The argument that separate sentences must be levied on separate charges was steeped in English law. As explained by MAKARAU J (Now JCC) in the case of S v Damba and Anor, HH69/2004, it later filtered into South African law before being adopted by our courts. Referring to the views of SMITH J in *Chawasarira* (supra), she put it thus:

> "In arriving at his decision, the learned judge was persuaded by the views expressed in two South African cases that followed the English practice of entering judgment and sentence separately for each charge. These views were expressed in the cases of *S v Nkosi* 1965 (2) SA 414 (C) and *S v Leshaba and Others* 1968(4) SA 576(T). In *S v Leshaba* (supra), the rationale for entering judgment and sentence on each separate charge was given as the need to attach relevant importance to each transgression. This view also appeals to me and in my view, lays a sound basis for imposing a separate sentence for each conviction generally unless the exceptional factors referred to by SMITH J are present and the resultant sentence will not distort the gravity of each conviction."

[9] In the same authority, her LADYSHIP then summarised the approach in the following words:

"The approach that a sentencing court must take in sentencing an accused convicted of more than one count can, in my view, be summarised as follows:

1. The general position is to impose a separate sentence for each conviction.
2. Where the multiple counts are similar in nature and not merely kindred, and are closely related in terms of time, the sentencing court has an option to either take each count separately or to take all counts as one.
3. The option to take all counts as one need not be taken. It is, however, preferable that it be taken.
4. The option to take all counts as one is not available where the multiple charges are not similar in nature, even if they are closely linked in terms of time.
5. The option to take all counts as one is not available where the multiple counts are not closely linked in terms of time even if they are similar in nature, unless they are committed as part of an ongoing course of conduct especially in fraud and theft by conversion matters, involving the same complainant and using the same *modus operandi*."

She added that where the nomenclature and nature of the counts are disparate regarding time or circumstances, it is impermissible to impose a global sentence.

[10] In the case of *Taruvinga* v *State* HH 37-89 CHIDYAUSIKU J (as he then was), remarked that:

"There is no fixed rule of law which requires a judicial officer to treat a multiplicity of counts as one for purposes of sentence, but it is the established practice that before a judicial officer can treat those counts as one for purposes of sentence, there has to be some close affinity between those counts in the manner or time in which the offences were committed. The same point was emphasised in *S* v *Nyathi* HB 60/03 when the court stated that:

'**Where multiple counts are closely connected or similar in point of time, nature, seriousness or otherwise, treating them together is a useful way of ensuring that the punishment is not duplicated or its cumulative effect is not too harsh.** Where counts are taken as together, however, the global sentence should be one which the court considers appropriate in the circumstances.'" (Bolding is my emphasis.)

[11] In this case, I have already stated that all the counts are related to the same crime of unlawful entry into premises. They were committed within one month in the same community. There can be no doubt, therefore, that the offences fell into the category described in the various authorities cited above. They are closely linked to each other in that they belong to the same genre and were produced during essentially the same period. Once that is ascertained, a trial court is permitted to either treat all counts as one for purposes of sentence and impose an appropriate global sentence; or to treat some of the counts as one for sentence and impose an appropriate sentence; or to consider each count

separately for purposes of sentence. Where a court chooses the last of the three options, it may then aggregate the individual sentences. From the total, it can decide to suspend a portion under the various permissible conditions. Yet another avenue available if the third option is resorted to is for the court to direct that the effective sentences in each of the counts be ordered to run concurrently. The guiding principle is to ensure that a fair and just sentence is imposed, regardless of the option chosen by the sentencing court. There must, however, be a rational basis justifying whichever option the sentencing court would have adopted; see, once again, the cases of S v Damba & Anor (supra); S v Chera & Anor 2008 2 ZLR 58 (H); and *S* v *Nyathi* (supra).

[12] I have already indicated that it is not a requirement for a trial court to group counts for sentencing purposes. But a court must always endeavour to mitigate the severity of the punishment imposed on an offender. In the instant matter, the offender was aged 25 years at the time of the commission of the crime. He is a family man, married with one minor child aged 2 years old. He indicated that he is a brick moulder, earning about US$50.00 a month. He had no money on his person. He had neither any savings nor assets of value. I appreciate the seriousness of the crime, but it does not take away the need to rationalise the sentencing process. An overemphasis on the severity of the offence alone may lead to an unduly harsh punishment. The sentencing magistrate ought to have exercised his sentencing discretion without being emotional. Punishment must not be the sole. It ought to consider all the other objectives. An offender must not be visited with a sentence that is intended to break him. This appears to be what has occurred in this matter. Singling out every count and then imposing penalties for each of them without the respite of those sentences running concurrently resulted in an unduly harsh aggregate sentence. The point I make was succinctly stated in *S* v *Sawyer* 1999 (2) ZLR 390 (H) at page 393C in the following terms:

> "On the other hand, where different counts are closely related to one another in some way, then it is not permissible, but often preferable, to treat separate counts collectively for sentencing. For instance, where different offences are committed together as part of the same criminal activity or where identical or similar offences are committed individually over a period of time but as one part of an ongoing cause of conduct or collective sentence will generally be appropriate."

[13] Needless to say, sentencing is essentially the discretion of the sentencing court, and this court will only interfere with that discretion where it has not been exercised judiciously. Here, it is clear that although a fairly lengthy sentence was inevitable, the tariff approach adopted by the trial magistrate resulted in a manifestly excessive sentence. I have already indicated that I am concerned with the learned magistrate's approach to imposing separate sentences for each of the fifteen counts. It resulted in a cumulative and globular sentence of 18 years and 10 months imprisonment, if he fails to make restitution to the various complainants. That he will fail to restitute is almost inevitable, given that he indicated during mitigation that he is a man of straw. He will be imprisoned for the next 10 years. He therefore has no means to raise the amounts he is required to restitute. Even if by some miracle, he manages to restitute the complainants, the effective sentence of 10 years 4 months is still manifestly excessive. It will leave the offender not only broken but also hopeless. That, in my view, constitutes a misdirection on the part of the trial magistrate, leaving this court with no choice but to interfere with the sentence.

Do the terms of imprisonment suspended on condition of restitution tally with the amounts involved?

[14] Section 358(2) (b) of the Criminal Procedure and Evidence Act [Chapter 9;07] (the CPEA) provides as follows:

> "(2) When a person is convicted by any court of any offence other than an offence specified in the Eighth Schedule, it may
> (a)…
> (b) pass sentence, but order the operation of the whole or part of the sentence to be suspended for a period not exceeding five years on such conditions as the court may specify in the order…"

[15] Where a court chooses to suspend part of a sentence on condition of restitution, it must fully exercise its mind regarding the determination of the period of suspension, viz-a-viz the value to be restituted. There is no magic formula for determining that. The decision on the length of the suspension period lies within the court's discretion, considering the offender's ability to pay and any other relevant circumstances, such as the duration of the offender's incarceration. The length of the period of suspension cannot be plucked from the air. A suspended prison term, suspended on any condition, is in effect as much a prison sentence as the effective term. That it will be predicated on the fulfilment of

some condition does not make it a lesser imprisonment than other terms. Put another way, the offender will still go to prison if he fails to satisfy the condition of suspension.

[16] It must follow that there ought to be a relationship between the length and nature of the suspended portion and the amount to be restituted. The suspension must act to incentivise the offender to pay the restitution. Where the offender fails to see the accrual of any benefit from paying restitution, he will feel no inclination to do so. The result is that, just as the offender will serve increased imprisonment, the complainant suffers equally. There is little that a complainant benefits from the incarceration of a person who offended against him/her.

[17] In *this case,* the learned magistrate failed to explain the basis for choosing to suspend portions of the prison terms for the purpose of restitution. For example, in count 4, the trial court suspended 6 months if the offender restituted USD 9.00; in count 7, six (6) months were suspended on condition of restitution in the sum of ZAR50.00; in count 8, six months (6) months were suspended on payment of USD$16. By any standard, the amounts of prejudice in the cited counts cannot be equated to six months' imprisonment. As is apparent, the amount in count 4 is double that in count 7; however, the magistrate chose to suspend the 6 months' imprisonment for it. Even worse is count 15, where a 5-month imprisonment was suspended on condition that the offender restitute the complainant in the sum of ZAR45,538. The above examples demonstrate that the suspension periods resorted to by the trial magistrate were nothing but thumb sucks. There was no logical reasoning behind their arrival. That is yet another misdirection, which forces me to interfere with the court a quo’s sentence.

[18] In conclusion, I must point out that the sentences imposed by the trial court were a maze. It is improbable that the unrepresented offender understood their import because even a trained mind would struggle to do so. The advantage of the grouping approaches I advocated above is that they make things a lot easier not only for the court but also for the offender himself. Fragmenting issues, as done here, may not be beneficial. The offender is a man who will almost certainly not be able to pay restitution. It is not a requirement that restitution be ordered in every case. It can only be so where there is an indication that an offender is capable of making restitution.

[19] In addition, I note that the offender was not a first timer. He has a recent conviction, following a conviction in 2021. A sentence of 8 months imprisonment was suspended on condition of his good behaviour. He failed to comply with the conditions of his suspended sentence. The trial magistrate brought it into effect. The question that begs an answer is, therefore, whether any purpose would be achieved by suspending several other portions of imprisonment on the same conditions of good future behaviour. The trial magistrate did not consider this in his sentencing judgment. He appears unaware of the purpose of suspending sentences of imprisonment on condition of future good behaviour. In the case of *S* v *Chirara and Ors* 1990 (2) ZLR 156, this court stated as follows:

> "The rationale behind the suspension of a sentence is normally said to include the following desirable features:
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> 1. The offender is deterred from repeating his misconduct by having a suspended sentence hanging over his head like the classical "sword of Damocles". The consequences of breaching the conditions of suspension are known and certain, and this is regarded as a more effective deterrent than the mere possibility of a more severe punishment for a subsequent offence.
> 2. A sentencing tribunal will often wish to give due and effective recognition to the frailties and deficiencies of youth and immaturity, and to give a first offender a second chance, as it were, to refrain from offending again. A suspended sentence serves to temper an otherwise severe penalty and recognises the veniality of many youthful transgressions.
> 3. When deciding upon an appropriate penalty for a youthful offender, a court will usually consider it desirable to formulate some type of sentence which, hopefully, will be rehabilitative in effect. A suspended sentence is based on this consideration.
> 4. It is well recognised that a sentence which, for good reason, keeps first offenders out of prison, or at least reduces the period of incarceration that would otherwise be served, is very often both desirable and appropriate. As stated by Ashworth in Sentencing & Penal Policy at 318, "custodial sentences should be used as sparingly as possible". One of the principal reasons for this statement is the "deleterious effects of penal institutions", (at 320), and the unfortunate results that regularly follow the imposition of custodial punishment."

[20] The offender in this case has already demonstrated that he cannot benefit from the imposition of a suspended sentence. It may be futile, therefore, to continue resorting to that tactic in the face of that defiance. The paradox of it all is that whilst the trial magistrate was busy suspending portions from the sentences he imposed, he then turned around to bring into effect an already suspended punishment. It is self-defeating.

[21] In the end, I have no choice but to direct as follows:

a. The sentences passed by the court a quo in counts 1-15 are hereby set aside
b. In their places is substituted the following:
    (i) All counts are taken as one for purposes of sentencing

(ii) The offender is sentenced to 7 years imprisonment

(iii) In addition, the 8 months imprisonment suspended at Nyamandlovu on CRB Nyam 94/21 is hereby brought into effect.

(iv) *The sentences in paragraphs (ii) and (iii) above shall run consecutively.*

c. The trial magistrate is directed to recall the offender to advise him of the amended sentence properly.

MUTEVEDZI J……..

NDLOVU J. ……Agrees